

**IN THE DISTRICT COURT OF APPEAL
FIRST DISTRICT, STATE OF FLORIDA**

CASE NO.: Not assigned yet

Lower Tribunal Case No.: 2018-CA-000543

MARC M. MOSZKOWSKI,

Petitioner,

v.

DEEPGULF, INC. and TOKE OIL AND GAS, S.A.,

Respondents.

PETITION FOR WRIT OF PROHIBITION

TO REVIEW ORDER DENYING MOTION TO DISQUALIFY TRIAL JUDGE

COMES NOW the Petitioner, Marc Moszkowski, pursuant to Rule 9.100(d), Florida Rules of Appellate Procedure, and respectfully petitions this Court for a Writ of Prohibition directed to the Honorable Jan Shackelford, Circuit Court Judge of the First Judicial Circuit, prohibiting her from further presiding over the above-captioned matter. As grounds, Petitioner states:

I. BASIS FOR JURISDICTION

This Court has jurisdiction to issue writs of prohibition under Article V, Section 4(b)(3) of the Florida Constitution and Rule 9.030(b)(3) of the Florida Rules of Appellate Procedure. A writ of prohibition is the proper remedy to challenge the denial of a legally sufficient motion to disqualify a trial judge.

II. PROCEDURAL HISTORY

1. On May 5, 2025, Petitioner filed a **Motion to Disqualify Presiding Judge and for Reassignment to a Different Division**, citing multiple grounds for reasonable fear of judicial bias and partiality, supported by specific examples and factual documentation.
2. On May 6, 2025, Petitioner filed two supplemental documents: (1) a **Supplement to the Motion** entitled *Evidence of Patterned Judicial Disregard and Substantive Mischaracterization of Record*; and (2) a **Reply to Plaintiffs' Opposition to Motion to Disqualify**, directly addressing factual and legal inaccuracies in Plaintiffs' opposition.
3. On May 7, 2025, Judge Shackelford issued a one-page Order summarily denying the Motion to Disqualify. The Order states only that the Court had considered the filings and determined that the

motion was legally insufficient under Florida Rule of General Practice and Judicial Administration 2.330. No further reasoning or analysis was provided.

4. The Order makes no reference to the timely-filed **Reply**, and fails to engage with the serious and specific allegations contained in the Motion and Supplement.

III. LEGAL STANDARD

Under Rule 2.330(f), Florida Rules of General Practice and Judicial Administration, a motion to disqualify is legally sufficient if it shows that "the party making the motion has a well-grounded fear that he or she will not receive a fair trial."

On review, the appellate court accepts the facts alleged in the motion as true and considers only whether those facts would create in a reasonably prudent person a well-founded fear of not receiving a fair and impartial trial. See *Livingston v. State*, 441 So. 2d 1083, 1086 (Fla. 1983).

IV. ARGUMENT

A. The Motion Alleged Specific, Documented Facts Supporting Disqualification

Petitioner's Motion was supported by dozens of concrete examples showing that the presiding Judge has repeatedly mischaracterized the record, failed to rule on meritorious and time-sensitive motions, and tolerated extended periods of inactivity without enforcement of judicial deadlines or case management protocols. For example, Defendant's 81-page *Motion to Strike the Complaint as a Sham* (filed on June 23, 2021 before Judge Robinson) remained dormant for over three years. Although Plaintiffs filed a Notice of Hearing on September 9, 2021, they were ultimately unavailable for the dates proposed by the Court. On October 11, 2021, Judge Robinson's Judicial Assistant informed the parties that the case would be reassigned on January 3, 2022, but did not provide the name of the new judge.

During the next two years, the case remained inactive. Chief Judge Miller issued administrative orders in July 2023 and then in July 2024 warning of closure of inactive reopened civil cases. Plaintiffs eventually filed voluminous documents in August 2023 and September 2024, including a 621-page *Motion to Take Judicial Notice* and a *Motion for Summary Judgment*, but it was not until February 12, 2025, that the Court issued its first order—an *Order Setting Case Management Conference*. The three-year delay, combined with unexplained judicial inaction and sudden

procedural acceleration, justifies a reasonable belief that the record was ignored and the case mismanaged. The *Motion to Strike the Complaint as a Sham* was ultimately denied without any discussion of its legal or factual substance. This permissive judicial stance toward case stagnation—combined with the unexplained denial of motions once finally heard—contributes to a reasonable fear that Petitioner cannot receive a fair adjudication on the merits. These allegations, taken as true, more than satisfy the standard for legal sufficiency ¹.

B. The Order Denying Disqualification Fails to Address the Merits or Acknowledge All Filings

On May 6, 2025, Petitioner filed a **Reply to Plaintiffs’ Opposition to Motion to Disqualify**, in addition to a **Supplement** entitled *Evidence of Patterned Judicial Disregard and Substantive Mischaracterization of Record*. While the trial court’s May 7, 2025 Order cursorily acknowledges the Supplement, it entirely omits any reference to the Reply, which was

¹ To the extent Respondents or the Court might argue that Defendant failed to act during this period of inactivity, it must be noted that the Court itself twice issued administrative orders indicating intent to close the case for inactivity. As the Defendant—and thus the likely beneficiary of dismissal for want of prosecution—Petitioner had no legal or strategic obligation to revive a case he reasonably believed Plaintiffs had abandoned.

timely filed and addressed key factual inaccuracies and legal misstatements advanced by Plaintiffs in opposition. The court's refusal to acknowledge or engage with this Reply—despite its direct relevance—reinforces the very perception of partiality and disregard for the adversarial record that formed the basis of the disqualification motion. A court's duty to review the full record includes material filed in timely support of a pending motion, particularly when it controverts contested assertions of fact. The omission here is not merely procedural; it is substantive and emblematic of the broader pattern of exclusion that reasonably supports a litigant's apprehension of judicial bias.

See MacKenzie v. Super Kids Bargain Store, Inc., 565 So. 2d 1332, 1335 (Fla. 1990); *Nunez v. Backman*, 645 So. 2d 1063 (Fla. 4th DCA 1994); *Sibley v. Sibley*, 885 So. 2d 980, 983 (Fla. 3d DCA 2004).

C. Failure to Provide Any Reasoned Explanation Undermines Appellate Review and Confidence

While a trial court is not required to detail findings when denying a disqualification motion, the complete lack of any reasoning or reference to the motion's content impairs meaningful review and further supports the

appearance of indifference or bias. See *Bundy v. Rudd*, 366 So. 2d 440, 442 (Fla. 1978).

V. RELIEF REQUESTED

WHEREFORE, Petitioner respectfully requests that this Court:

1. Issue a Writ of Prohibition prohibiting the Honorable Jan Shackelford from further presiding over the case below;
2. Direct the Clerk of the Circuit Court to reassign the case to a different division under Rule 2.330(j);
3. Grant such further relief as this Court deems just and proper.

FINAL OBSERVATION

This case is factually and procedurally exceptional. The record is replete with examples of fabricated, backdated, or altered evidence, and the judicial handling of those issues has consistently failed to engage with their substance. This is not a case in which applicable precedent is easily found—not because the law is unsettled, but because few cases proceed under such fundamentally distorted conditions. Had Petitioner been represented by counsel from the outset, it is likely that the complaint would never have been filed, or would have been dismissed promptly. The

prolonged litigation appears to have relied on the expectation that Petitioner, unrepresented and remote, would never respond. That expectation has failed, and the judicial system must now reckon with a record that cannot be ignored.

Indeed, when Petitioner removed the case to federal court on his own, just twenty-one days after being served, and a year later managed to retain counsel—at the cost of all personal financial resources—the litigation was tested in an impartial forum. Within ten months, eight out of nine Counts were disposed of on summary judgment. The ninth, Count I, was in effect moot and anyway unopposed by Defendant. This result provides an objective, judicially tested confirmation of the action's substantive weakness.

Moreover, at the time of the initial filing on April 3rd, 2018, the claims themselves were already time-barred under the applicable statute of limitations, a defect apparent on the face of the pleadings. That the case proceeded when remanded to State Court despite this threshold bar further underscores the degree to which ordinary standards of judicial review have been disregarded.

Ironically, despite the case having been remanded under false pretenses, there now exists applicable precedent for the validity of Petitioner's defense—his own. The very litigation that sought to exploit presumed silence has instead yielded its own factual and legal refutation.

Respectfully submitted this 12th day of May, 2025

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CERTIFICATE OF SERVICE

I hereby certify that, on this 12th day of May, 2025, a copy of this Supplement has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

